IN THE NATIONAL COMPANY LAW TRIBUNAL
INDORE BENCH
COURT NO. 1

ITEM No.201

TP 44 of 2019 [CP(CAA) 127 of 2018 in CA(CAA) 66 of 2018]

Proceedings under Section 230-232

IN THE MATTER OF:

Puma Plastopack Pvt Ltd
Narsing Corrugators Pvt Ltd
Shriji Corrugators (Mandideep) Pvt Ltd
Shree Packers (MP) Pvt Ltd **.....Applicants**

Order delivered on 23/12/2022

Coram:

Dr. Madan B. Gosavi, Hon'ble Member(J)
Kaushalendra Kumar Singh Hon'ble Member(T)

PRESENT:

For the Applicant :
For the Respondent :

ORDER

The case is fixed for pronouncement of order.

The order is pronounced in open Court vide separate sheet.

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KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

DR. MADAN B. GOSAVI
MEMBER (JUDICIAL)

Braj Mohan

NATIONAL COMPANY LAW TRIBUNAL
INDORE BENCH

TP/44/MP/2019
CP (CAA) 127/230-232/2018 in
CA (CAA) 66/230-232/2018

[An Application filed under section 230-232 of the Companies Act, 2013 for (compromise, arrangements, and amalgamations)]

In the matter of

Puma Plastopack Pvt. Ltd.
CIN: U24132MP1994PTC008198
A company incorporated under the
provisions of the Companies Act, 1956
and having its registered office at:
68, Industrial Area,
Maxi Road, Ujjain,
Madhya Pradesh- 456010

……Petitioner/Transferor Company 1

Narsingh Corrugators Pvt. Ltd.
CIN: U29101MP1996PTC01124
A company incorporated under the
provisions of the Companies Act, 1956
and having its registered office at:
Plot No. 69, Industrial Area,
Maxi Road, Ujjain,
Madhya Pradesh 452010

……Petitioner/Transferor Company 2

Shriji Corrugators (Manideep) Pvt. Ltd.
CIN: U21020MP2012PTC028164
A company incorporated under the
Provisions of Companies Act, 1956
and having its registered address at:
42, Chhota Sarafa,
Ujjain,
Madhya Pradesh 456010

……Petitioner/Transferor Company 3

Shree Packers (MP) Pvt. Ltd.
CIN: U21000MP2010PTC024229
A company incorporated under the
Provisions of Companies Act, 1956
and having its registered address at:
68, Industrial Area,

Maxi Road, Ujjain
Madhya Pradesh 456010

……Petitioner/Transferee Company

Order Reserved on: 02.12.2022
Order Pronounced on: 23.12.2022

Coram: Dr. Madan Bhalchandra Gosavi, Member (Judicial)
Kaushalendra Kumar Singh, Member (Technical)

Appearance:
Ld. Adv. Mr. Pavan S. Godiawala, for the Petitioner Companies.

ORDER

1. This joint petition has been filed under sections 230-232 of the Companies Act, 2013 (the Act) by the petitioner companies seeking sanction of this Tribunal to a scheme of arrangement for amalgamation of M/s Puma Plastopack Private Limited (Transferor Company 1), M/s Narsingh Corrugators Private Limited (Transferor Company 2) and, M/s Shriji Corrugators Private Limited (Transferor Company 3) with M/s Shree Packers (MP) Private Limited (Transferee Company) and their respective Shareholders and Creditors (hereinafter referred to as the "Scheme").

2. It is stated that all the petitioner companies are situated in the State of Madhya Pradesh, hence, all the companies are under the jurisdiction of the National Company Law Tribunal Bench at Indore.

3. The petitioner companies filed a joint Company Application CA (CAA) No. 66 of 2018 before NCLT, Ahmedabad Bench (at the time of filing the first motion application there was no separate bench for the companies registered under the ROC, Gwalior) seeking directions for dispensation of meetings of equity shareholders, secured creditors and unsecured creditors of the applicant companies. The Tribunal

(Ahmedabad Bench) vide order dated 16.07.2018 dispensed the meetings of the equity shareholders, and unsecured creditors of all the applicant companies. However, there were no secured creditors and unsecured creditors in the transferor company 1, so no meeting was required to be convened.

4. By the order dated 16.07.2018, passed in CA(CAA) No. 66 of 2018, the Tribunal (Ahmedabad Bench) had directed the petitioner companies to serve notice of the scheme in compliance with section 230(5) of the Companies Act, 2013 to (i) the Central Government through the Reginal Director; (ii) the Registrar of Companies, Madhya Pradesh; (iii) the concerned Income Tax Authority and (iv) the Official Liquidator (in respect of the transferor companies) stating that representations, if any, to be made within a period of 30 days from the date of receipt of such notice, and in case no representation is received by the Tribunal within the stipulated period of 30 days, it should be presumed that the authorities have no representation to make. In compliance with the order dated 16.07.2018, the petitioner companies served notices to the Central Government through the Regional Director, the Registrar of Companies, the concerned Income Tax Authorities, and the Official Liquidator (in respect of the transferor companies).

5. The petitioner companies have jointly filed the present petition CP(CAA) No. 127 of 2018 before NCLT, Ahmedabad Bench (later on NCLT, Indore Bench was formed and the matter was transferred to NCLT, Indore Bench) seeking sanction of the proposed scheme of arrangement for amalgamation. The Tribunal (Ahmedabad Bench), by order dated 19.11.2018, admitted the aforesaid petition and directed the issuance of notices to the Regional Director, Registrar of Companies, Official Liquidator, and Income Tax Authority informing the date of hearing.

The Tribunal (Ahmedabad Bench) also directed the publication of notice of hearing of the petition in newspapers (“Prabhat Kiran” Ujjain Edition in

Hindi and "Free Press" in English) not less than 10 days before the fixed date of hearing, calling for objection, if any, on or before the date of hearing.

The petitioner companies submitted that the notice of hearing of the petition was published as per the order of the Tribunal. The affidavit of service and publication along with necessary proof of service is filed and the same is placed on record.

6. In response to the notice received from the petitioner companies, the Official Liquidator (OL) has submitted his separate report dated 16.11.2018 with respect to the petitioner companies wherein the OL has made the following observations:

(i) At para 13 (i) OL has prayed that directions may be given to the transferor company 3 to clarify as to why AS-15 is not followed by the transferor company.

(ii) At para 13 (ii) OL has prayed that directions may be given to the transferor company 2 to submit NOC of creditors of M/s Tirupati Corrugators (to whom the aforesaid company has provided guarantee of Rs 8.32 Crores).

(iii) At para 14 the OL has observed that a complaint was received from the Income Tax Department against the Scheme, in which the Income Tax Department had opined that: *"the interconnection of various entities of the group and inter-circulation of transactions/amounts, if any, within the group and its possible future impact are to be examined. In view of the same, it would not be in the interest of the Revenue, if these companies are allowed to be amalgamated. Further, the amalgamation may be a colorable device to give legitimacy to the funds introduced through layering. Also, after amalgamation, the status of the entities will be changed forever, which may make an adverse impact on the ongoing and*

future proceedings against the said entities therefore, the Scheme of amalgamation may kindly not be allowed at least at this stage."

(iv) At para 16, the OL has prayed that directions may be given to the petitioner companies to take responsibility in respect of payment of Income tax and other taxes.

(v) At para 18, the OL has prayed that direction may be given to the transferee company to preserve the Books of Accounts, papers, and other records of the transferor companies and not to dispose of without prior permission of the Central Government as per the provisions of section 239 of the Companies Act, 2013.

(vi) At para 19, the OL has prayed that directions may be given to the transferee company to comply with the requirements of accounting standards under section 133 of the Companies Act, 2013.

(vii) At para 20, the OL has prayed that directions may be given to the transferee company to ensure statutory compliance of all applicable laws.

Submissions made by the petitioner companies in response to the observations of the Official Liquidator are as follows:

(i) In response to the observation at para 13 (i) of the OL, the petitioner companies have stated that AS-15 employee benefit deals with all the forms of employee benefits, all forms of consideration given by a company in exchange for the services rendered by employees. It provides for the accounting treatment of short-term and long-term defined contribution or defined benefits plans taken up by the employer (petitioner transferor company 3) for the welfare or benefit of its employee. Defined contribution plans are the post-employment benefits in which a company pays fixed contributions into a separate fund and will have no obligations to

pay any amount in future. Defined benefits plans are the post-employment benefits which are not covered by the defined contribution plans. However, if the employer (petitioner transferor company 3) has no statutory obligation to enroll in any defined plan and chooses not to implement any such plan, then it shall have no disclosure or reporting liability under AS-15. The petitioner transferor company 3 has only 8 employees and thus it is not covered under Employee Provident Funds Act, Gratuity Act, and the Bonus Act. Therefore, in absence of any benefit plans taken by the petitioner transferor company 3, there is no reporting obligation under AS-15 on the petitioner transferor company 3.

(ii) In response to the observation at para 13(ii) of the OL, the petitioner companies have stated that merely a Corporate Guarantee given by the petitioner transferor company 2 for M/s Tirupati Corrugators does not make such a third person a creditor of the petitioner transferor company 2 and it also does not reflect in the Balance Sheet of the petitioner transferor company 2. Moreover, M/s Tirupati has paid off the said loan of Rs 8.32 Crores as on date.

(iii) In response to the observation at para 14 of the OL, the petitioner companies have stated that no assessment proceedings have been initiated against any of the petitioner transferor companies and a **Nil Demand** has been raised from the petitioner transferor companies for the assessment year 2011-12 dated 25.12.2018. It would neither be prejudicial to the interest of any statutory body nor there would be any loss to the revenue as all the liabilities, whether accrued or unaccrued, along with all the rights available under law, of all the three petitioner transferor companies, with the same terms and conditions as if, the said liabilities were originally pertaining to the petitioner transferee company. Further, the petitioner transferee company undertakes

full responsibility to co-operate and extend full support to the Income Tax Department in relation to the survey proceedings against the petitioner transferor companies.

(iv) In response to the observation at para 16 of the OL, the petitioner transferee company undertakes full responsibility to honor any tax liability that arose on any of the petitioner transferor companies upon the sanction of the Scheme of Amalgamation.

(v) In response to the observation at para 18 of the OL, the petitioner transferee company undertakes to preserve all the books, registers, papers, vouchers, etc. pertaining to all the petitioner transferor companies for future needs.

(vi) In response to the observation at para 19 of the OL, the petitioner transferee company undertakes to comply with the requirements of Accounting Standards under section 133 of the Companies Act, 2013.

(vii) In response to the observation at para 20 of the OL, the petitioner transferee company undertakes to comply with the statutory compliances of all applicable laws.

7. In response to the notice served upon the Regional Director (RD) and the Registrar of Companies (ROC), a combined representation was filed by the RD dated 25.01.2022

(i) At para (e), the RD has observed that the petitioner transferee company be required to pay the difference of amount of fees which is payable on the enhanced authorized capital.

(ii) ROC in the report dated 21.01.2022 submitted that there are no complaints against the petitioner companies and also there is no complaint/representation against the scheme of amalgamation of the companies.

In response to the observation made by the RD, the petitioner companies have stated that the Authorized Capital of all the petitioner transferor companies is 1,65,00,000/- and that of the petitioner transferee company is Rs 2,35,00,000/-. The fee has been paid by all the petitioner companies on its Authorized Capital. Hence, the petitioner transferee company is not liable to pay any fee on the consolidated Authorized Capital of Rs 4,00,00,000/- upon the sanction of the Scheme of Amalgamation.

Regional Director as well as the Official Liquidator also submitted that the related legal fees/expenses, for submitting the report and representing the matter may be paid by the Petitioner Companies.

8. Considering the above reply filed by the petitioner companies, the observations made by the Regional Director and the representation of the Official Liquidator stand satisfied.

9. It has been submitted by the learned advocate appearing for the Petitioner Companies that the Scheme is not against public policy. It has also been stated that it will not adversely impact any secured or unsecured creditors of the petitioner companies. It has also been submitted that all statutory obligations under all applicable laws shall be complied with.

10. On the basis of the above facts and submissions made by the learned advocate and after considering the entire facts and circumstances of the aforesaid company petition and on perusal of the scheme and the proceedings, it is noted that the requirements of the provisions of section 230 and 232 are satisfied by the petitioner companies. We are of the considered view that the proposed Scheme of amalgamation is bona fide and in the interest of the shareholders and creditors. As the result, Company Petition No. CP (CAA) No. 127 of 2018 is allowed. The Scheme envisages the amalgamation of M/s Puma Plastopaack Pvt. Ltd. (Transferor Company 1), M/s Narsingh Corrugators

Pvt. Ltd. (Transferor Company 2), and M/s Shriji Corrugators (Manideep) Pvt. Ltd. (Transferor Company 3) with M/s Shree Packers (MP) Pvt. Ltd. (Transferee Company) is hereby sanctioned. The said scheme will have to be effective from the date of appointment i.e. 01.04.2020 as set out in the scheme. It is declared that the said sanctioned scheme shall be binding on the petitioner companies and their shareholders, creditors, and all concerned under the scheme.

11. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule, or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with the law, against the concerned persons, directors and officials of the petitioners.

12. While approving the Scheme as above, we further clarify that this order should not be construed as an order in granting any exemption from payment of stamp duty, taxes including income tax, GST, etc., or any other charges, if any, and payment in accordance with law or in respect of any permission/compliance with any other requirement which may be specifically required under any law.

13. This Tribunal order as under:

ORDER

I. The scheme of arrangement envisaging the amalgamation of M/s Puma Plastopaack Pvt. Ltd. (Transferor Company 1), M/s Narsingh Corrugators Pvt. Ltd. (Transferor Company 2), and M/s Shriji Corrugators (Manideep) Pvt. Ltd. (Transferor Company 3) with M/s Shree Packers (MP) Pvt. Ltd. (Transferee Company) as annexed herewith as **"Annexure A"** is hereby sanctioned and it is declared that the same shall be binding on the petitioner companies and their shareholders and creditors and all concerned under the Scheme.

II. It is declared that the petitioner transferor companies shall be dissolved without winding up.

III. All the property annexed herewith as **"Annexure B"**, rights and power of the petitioner transferor companies specified in the schedule hereto, and all the other property, rights, and powers of the petitioner transferor companies be transferred without further act or deed to the petitioner transferee company.

IV. All the liabilities and duties of the petitioner transferor companies be transferred without further act or deed to the petitioner transferee company and accordingly the same shall pursuant to section 232 of the Act become the liabilities and duties of the petitioner transferee company.

V. All proceedings, if any, now pending or against the petitioner transferor companies be continued by or against the petitioner transferee company.

VI. The petitioner companies within thirty days of the date of receipt of this order, cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the entire undertaking of the petitioner transferor companies shall stand transferred to the petitioner transferee company and the Registrar of Companies shall place all documents relating to the petitioner transferor companies to the file kept by him in relation to the petitioner transferee company and the files relating to the said Companies shall be treated accordingly.

VII. The petitioner companies are further directed to file a copy of this order along with the copy of the Scheme with the concerned Registrar of Companies, electronically, along with e-form INC-28 in addition to a physical copy within 30 days from the date of

issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

VIII. All concerned Authorities to act on a copy of this order along with the Scheme authenticated by the Registrar of this Tribunal, and the Registrar shall issue the certified copy of this order along with the Scheme immediately.

IX. The petitioner companies are directed to lodge a copy of this Order and the approved Scheme and Schedule of Assets of the petitioner transferor companies attached as Annexure-B with this order, duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty, if any, within 60 days from the date of the Order.

X. The legal fees and expenses of the office of the Regional Director are quantified at Rs 10,000/- with respect to the petitioner companies. The said fees to the Regional Director shall be paid by the petitioner transferee company.

XI. The legal fees and expenses of the office of the Official Liquidator are quantified at Rs 10,000/- with respect to the petitioner transferor companies. The said fees to the Official Liquidator shall be paid by the petitioner transferee company.

13. Any person aggrieved shall be at liberty to apply to the Tribunal in the above matter for any direction that may be necessary.

14. The Company Petition CP (CAA) No. 127 of 2018 connected with CA (CAA) No. 66 of 2018 is disposed of. No order as to costs.

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KAUSHALENDRA KUMAR SINGH
Member (Technical)

Dr. MADAN B. GOSAVI
Member (Judicial)

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Annexure-A

ANNEXURE P-25

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SCHEME OF AMALGAMATION

OF

PUMA PLASTOPACK PRIVATE LIMITED

(The Transferor Company-I)

AND

NARSING CORRUGATORS PRIVATE LIMITED

(The Transferor Company -II)

AND

SHRIJI CORRUGATOR (MANDIDEEP) PRIVATE LIMITED

(The Transferor Company-III)

WITH

SHREE PACKERS (M.P.) PRIVATE LIMITED

(The Transferee Company)

M/s. Puma Plasto Pack Pvt. Ltd
DIRECTOR

Narsing Corrugators Pvt. Ltd.
Director

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

1. PREAMBLE

This Scheme of Amalgamation is presented under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 & the Rules framed there under including any statutory modifications or re-enactments thereof, if any, for the amalgamation of **PUMA**

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PLASTOPACK PRIVATE LIMITED (hereinafter referred to as "The Transferor Company-I), **NARSING CORRUGATORS PRIVATE LIMITED** (hereinafter referred to as "The Transferor Company-II) and **SHRIJI CORRUGATORS (MANDIDEEP) PRIVATE LIMITED** (hereinafter referred to as "The Transferor Company-III) into **SHREE PACKERS (M.P.) PRIVATE LIMITED** (hereinafter referred to as "The Transferee Company") and in compliance with the conditions relating to "Amalgamation" as specified u/s 2(1B) of the Income Tax Act, 1961 and the same is divided into the following parts:

M/s. Puma Plasto Pack Pvt. Ltd
DIRECTOR

Part A - deals with Definitions and Share Capital;

Narsing Corrugators Pvt. Ltd.
Director

Part B - deals with Amalgamation of **PUMA PLASTO PACK PRIVATE LIMITED, NARSHSINGH CORRUGATORS PRIVATE LIMITED PUMA, SHRIJI CORRUGATORS (MANDIDEEP) PRIVATE LIMITED** and **SHREE PACKERS (M.P.) PRIVATE LIMITED;**

Shriji Corrugators(Mandideep) Pvt. L...
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

Part C – deals with General Clauses, Terms and Conditions.

2. RATIONALE FOR THE SCHEME OF AMALGAMATION

All Transferor Companies and Transferee Company are under the same management group. The management is of

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the opinion that the merger will lead to synergies of operations and more particularly the following benefits:

a) All Transferor Companies and Transferee Company are under the same management group and it would be advantageous to combine the activities and operations in a single Company. The amalgamation will provide synergistic linkages besides economies in costs by combining the total business functions and related activities and operations and thus contribute to the profitability of the amalgamated Company.

b) It would be advantageous to combine the activities and operations of all the Transferor Companies and Transferee Company into a single Company for leveraging Financial and Operational resources and for the benefit of lesser compliance issues.

c) The Scheme of Amalgamation will result in cost saving for all the Transferor Companies and Transferee Company and is expected to result in administrative efficiency and higher profitability levels for the Transferee Company.

M/s. Purna Plasto Pack Pvt. Ltd
DIRECTOR

Narsing Corrugators Pvt. Ltd.
Director

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

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PART - A

DEFINITIONS AND SHARE CAPITAL

3. DEFINITIONS

In this Scheme, unless inconsistent with the subject or context, the following expressions shall have the following meanings:

3.1. **"PUMA PLASTO PACK PRIVATE LIMITED"**, a private limited company incorporated on 21st March, 1994 under the Companies Act, 1956 and having its Registered Office situated at 69-B, Industrial Area, Maxi Road, Ujjain-456010, Madhya Pradesh, India.

M/s. Puma Plasto Pack Pvt. Ltd
DIRECTOR

3.2. **"NARSINGH CORRUGATORS PRIVATE LIMITED"**, a private limited company incorporated on 18th July, 1996 under the Companies Act, 1956, and having its Registered Office situated at Plot No. 69D, Industrial Area, Maxi Road, Ujjain-456010, Madhya Pradesh, India"

Narsing Corrugators Pvt. Ltd.
Director

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

3.3. **"SHRIJI CORRUGATORS (MANDIDEEP) PRIVATE LIMITED** " a private limited company incorporated on 10th April, 2012, The registered office situated at 42, Chhota Sarafa, Ujjain - 456006, Madhya Pradesh, India

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3.4. " **SHREE PACKERS (M.P.) PRIVATE LIMITED**", a private limited company incorporate on 1st September, 2010 under the Companies Act, 1956 and having its Registered Office situated at 68, Industrial Area, Maxi road, Ujjain - 456010, Madhya Pradesh, India

3.5. "Act" means the applicable provisions of the Companies Act, 2013 and the Rules framed there under in force from time to time.

M/s. Puma Plasto Pack Pvt. Ltd
DIRECTOR

3.6. "The Appointed Date" means 15th March, 2018 or such other date as the National Company Law Tribunal (Tribunal) or other competent authority may otherwise approve.

Narsing Corrugators Pvt. Ltd.
Director

3.7. "The Effective Date" means the date on which certified copies of the Order(s) of the National Company Law Tribunal (Tribunal) vesting the assets, properties, liabilities, rights, duties, obligations and the like of all the Transferor Companies in the Transferee Company are filed with the Registrar of Companies, Gwalior, Madhya Pradesh, after obtaining the necessary consents, approvals, permissions, resolutions, agreements, sanctions and orders in this regard.

Shriji Corrugators/Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

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3.8. "Tribunal" shall for the purpose of this Scheme, mean the National Company Law Tribunal (Tribunal) and the expression shall include the powers vested in the National Company Law Tribunal including Bench constituted under the provisions of the Act as applicable to the Scheme.

3.9. "Undertaking" shall mean and include:

(a) All the assets and properties and the entire business of all the Transferor Companies collectively as on the Appointed Date (hereinafter referred to as "the said assets"),

(b) All the debts, liabilities, contingent liabilities, duties, obligations and guarantees of all the Transferor Companies as on the Appointed Date (hereinafter referred to as "the said liabilities"),

(c) Without prejudice to the generality of sub-clause (a) above, the Undertakings of the Transferor Companies shall include the Transferor Companies reserves, movable and the immovable properties, all other assets including investments in shares, debentures, bonds and other securities, claims, loans and advances, deposits, ownership rights, lease-hold rights, tenancy rights, occupancy rights, hire purchase

M/s. Puma Plasto Pack Pvt. Ltd
DIRECTOR

Narsing Corrugators Pvt. Ltd.
Director

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

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contracts, leased assets, lending contracts, revisions, powers, permits, authorities, licenses, consents, approvals, municipal permissions, industrial and other licenses, permits, authorizations, quota rights, registrations, import/ export licenses, bids, tenders, letter of intent, connections for water, electricity and drainage, sanctions, consents, product registrations, quota rights, allotments, approvals, freehold/leasehold land, buildings, factory buildings, plant & machinery, electrical installations and equipments, furniture and fittings, laboratory equipments, office equipments, effluent treatment plants, tube wells, software packages, vehicles and contracts, engagements, titles, interest, benefits, allocations, exemptions, concessions, remissions, subsidies, tax deferrals, tenancy rights, trademarks, brand names, patents and other industrial and intellectual properties, import quotas, telephones, telex, facsimile, websites, e-mail connections, networking facilities and other communication facilities and equipments, investments, rights and benefits of all agreements and all other interests, rights and power of every kind, nature and description whatsoever, privileges, liberties,

M/s. Puma Plasto Pack Pvt. Ltd
DIRECTOR

Narsing Corrugators Pvt. Ltd.
Director

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

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easements, advantages, benefits and approvals and all necessary records, files, papers, process information, data catalogues and all books of accounts, documents and records relating thereof.

(d) Without prejudice to the generality of the above, all benefits including under Income Tax, Excise (including Cenvat), Sales Tax (including deferment of sales tax), Goods and Service Tax etc., to which any/all the Transferor Companies are entitled to in terms of the applicable Tax Laws of the Union and State Governments.

M/s. Puma Plasto Pack Pvt. Ltd
DIRECTOR

3.10. "The Scheme" means this Scheme of Amalgamation in its present form or with any modification(s) approved or imposed or directed by the National Company Law Tribunal (Tribunal).

Narsing Corrugators Pvt. Ltd.
Director

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

4. SHARE CAPITAL.

M/s. Shree Packers (M.P.) Pvt. Ltd
APPIT BANGUR
Director

4.1. The Authorised, issued, subscribed and paid up Share Capital of Transferor-I Company as at March 31, 2017 is as under :-

Particulars	*Amount (in Rs.)*
Authorised Capital	

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easements, advantages, benefits and approvals and all necessary records, files, papers, process information, data catalogues and all books of accounts, documents and records relating thereof.

(d) Without prejudice to the generality of the above, all benefits including under Income Tax, Excise (including Cenvat), Sales Tax (including deferment of sales tax), Goods and Service Tax etc., to which any/all the Transferor Companies are entitled to in terms of the applicable Tax Laws of the Union and State Governments.

M/s. Puma Plasto Pack Pvt. Ltd
DIRECTOR

3.10. "The Scheme" means this Scheme of Amalgamation in its present form or with any modification(s) approved or imposed or directed by the National Company Law Tribunal (Tribunal).

Narsing Corrugators Pvt. Ltd.
Director

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
ARUN BANGUR
Director

4. SHARE CAPITAL.

4.1. The Authorised, issued, subscribed and paid up Share Capital of Transferor-I Company as at March 31, 2017 is as under :-

Particulars	***Amount (in Rs.)***
Authorised Capital	

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2,50,000 Equity Shares of Rs.10/- each	*25,00,000*
Total	***25,00,000***
Issued, Subscribed and Paid-up	
2,37,175 Equity Shares of Rs.10/- each fully Paid-up	*23,71,750*
Total	***23,71,750***

4.2. The Authorised, issued, subscribed and paid up Share Capital of Transferor-II Company as at March 31, 2017 is as under :-

M/s. Purna Plasto Pack Pvt. Ltd
DIRECTOR

Particulars	***Amount (in Rs.)***
Authorised Capital	
4,00,000 Equity Shares of Rs.10/- each	*40,00,000*
Total	***40,00,000***
Issued, Subscribed and Paid-up	
1,86,900 Equity Shares of Rs.10/- each fully Paid-up	*18,69,000*
Total	***18,69,000***

Narsing Corrugators Pvt. Ltd.
Director

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

4.3. The Authorised, issued, subscribed and paid up Share Capital of Transferor-III Company as at March 31, 2017 is as under :-

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Particulars	***Amount (in Rs.)***

Authorised Capital	
10,00,000 Equity Shares of Rs.10/- each	*1,00,00,000*
Total	***1,00,00,000***
Issued, Subscribed and Paid-up	
5,00,000 Equity Shares of Rs.10/- each fully Paid-up	*50,00,000*
Total	***50,00,000***

4.4. The Authorised, issued, subscribed and paid up Share Capital of Transferee Company as at 31st March, 2017 is as under :-

Particulars	***Amount (in Rs.)***
Authorised Capital	
23,50,000 Equity Shares of Rs.10/- each	*2,35,00,000*
Total	***2,35,00,000***
Issued, Subscribed and Paid-up	
23,34,285 Equity Shares of Rs.10/- each fully Paid-up	*2,33,42,850*
Total	***2,33,42,850***

For Parth Plasto Pack Pvt. Ltd.
DIRECTOR

Narsing Corrugators Pvt. Ltd.
Director

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd.
ARPIT BANGUR
Director

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

5. COMBINATION OF AUTHORISED SHARE CAPITAL

5.1. Upon the Scheme coming into effect, the Authorized Share Capital of all the Transferor Companies shall stand combined with the Authorized Share Capital of the Transferee Company and stand increased from:-

The Authorized share capital of Puma Plasto Pack Private Limited, the Transferor Company-I is Rs. 25,00,000 (Rupees Twenty Five Lakhs Only) comprising of 2,50,000 Equity Shares of Rs. 10/-, Narsingh Corrugators Private Limited, the Transferor Company-II is Rs. 40,00,000 (Rupees Forty Lakhs Only) comprising of 4,00,000 Equity Shares of Rs. 10/- and Shriji Corrugators (Mandideep) Private Limited, the Transferor Company-III is Rs. 1,00,00,000/- (Rupees One Crore Only) comprising of 10,00,000 Equity Shares of Rs. 10/- each shall stand transferred and combined to the credit of the Authorized Equity Share Capital of Shree Packers (MP) Private Limited, the Transferee Company so that the Authorized capital so combined shall stand increased from 2,35,00,000/- (Rupees Two Crores Thirty Five Lakhs Only) divided into 23,50,000 Equity Shares of Rs. 10/- each to Rs. 4,00,00,000/- Authorized share Capital divided into 40,00,000 Equity Shares of Rs. 10/- each and

M/s. Puma Plasto Pack Pvt. Ltd
DIRECTOR

Narsing Corrugators Pvt. Ltd.
Director

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

accordingly the Memorandum of Association of the Transferee Company shall automatically stand amended and the words and figures in Clause V of the Memorandum of Association shall be substituted to read as follows;

"The Authorized Share Capital of the Company is Rs. 4,00,00,000/- (Rupees Four Crores only) divided into 40,00,000 (Fourty Lakhs) Equity Shares of Rs.10/- (Rs. Ten Only) each, with power to the Company to increase or reduce the said Capital and to issue any part of its Capital original or increased with or without any preference, priority or special privileges or subject to any postponement of rights or to any conditions or restrictions."

M/s. Puma Plasto Pack Pvt. Ltd
DIRECTOR

Narsing Corrugators Pvt. Ltd.
Director

5.2. The filing fee and stamp duty already paid by all the Transferor Companies on its Authorized Share Capital which are being combined with the Authorized Share Capital of the Transferee Company, shall be deemed to have been paid by the Transferee Company and accordingly the Transferee Company shall not be required to pay any fee, additional fee, charges and/or stamp duty on the Authorized Share Capital so increased. However, the Transferee Company shall

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

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file the amended copy of its Memorandum of Association and Articles of Association with the Registrar of Companies within a period of 30 days from the Effective Date and the Registrar of Companies shall take the same on record.

5.3. It is hereby clarified that the consent of the shareholders of the Transferee Company to the Scheme shall be deemed to be sufficient for the purposes of effecting this amendment and no further resolution(s) under section 13, Section 14, Section 61, section 62 or any other applicable provisions of the Companies Act, 2013, would be required to be separately passed.

M/s. Puma Plasto Pack Pvt. Ltd
DIRECTOR

Narsing Corrugators Pvt. Ltd.
Director

5.4. It is clarified that the approval of the members of the Transferee Company to the Scheme shall be deemed to be their consent/approval for the increase of the Authorized Share Capital, amendment of the Capital clause of the Memorandum of Association under the relevant provisions of the Act.

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

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PART-B

AMALGAMATION OF THE TRANSFEROR COMPANIES WITH THE TRANSFEREE COMPANY

6. TRANSFER AND VESTING OF UNDERTAKINGS.

6.1 With effect from the opening of the business as on the Appointed Date (i.e. 15th March, 2018) and subject to the provisions of this Scheme, the entire Undertaking of the all the Transferor Companies including their assets and liabilities as on the Appointed Date, shall pursuant to the applicable provisions of the Act, without any further act, instrument or deed, be and shall stand transferred to and vested in and/or deemed to have been transferred to and vested in the Transferee Company as a going concern subject, however, to all charges, liens, mortgages, if any, then affecting the same or any part thereof.

M/s Prime Plasto Pack Pvt. Ltd.
DIRECTOR

Narsing Corrugators Pvt. Ltd.
Director

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

6.2 The entire business of all the Transferor Companies as a going concern and all the properties whether movable or immovable, real or personal, corporeal or incorporeal, present or contingent including but without being limited to all assets, authorized capital, fixed assets, capital work-in-progress, current assets and debtors, investments, rights, claims and powers,

M/s. Shree Packers (M.P.) Pvt. Ltd.
ARPIT BANGUR
Director

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authorities, allotments, approvals and consents, reserves, provisions, permits, ownerships rights, lease, tenancy rights, occupancy rights, incentives, claims, rehabilitation schemes, funds, quota rights, import quotas, licenses, registrations, contracts, engagements, arrangements, brands, logos, patents, trade names, trade marks, copy rights, all other intellectual property rights, other intangibles of all the Transferor Companies whether registered or unregistered or any variation thereof as a part of their name or in a style of business otherwise, other industrial rights and licenses in respect thereof, lease, tenancy rights, flats, telephones, telexes, facsimile connections, e-mail connections, internet connections, websites, installations and utilities, benefits of agreements and arrangements, powers, authorities, permits, allotments, approvals, permissions, sanctions, consents, privileges, liberties, easements, other assets, special status and other benefits that have accrued or which may accrue to the Transferor Company on and from the Appointed Date and prior to the Effective Date in connection with or in relation to the operation of the undertaking and all the rights, titles, interests, benefits, facilities and advantages of whatsoever nature and where ever situated belonging

M/s. Puma Plasto Pack Pvt. Ltd
DIRECTOR

Narsing Corrugators Pvt. Ltd.
Director

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

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to or in the possession of or granted in favour of or enjoyed by all the Transferor Companies as on the Appointed Date and prior to the Effective Date shall, pursuant to the applicable provisions of the Act, without any further act, instrument or deed, be and stand transferred to and vested in or deemed to be transferred to and vested in the Transferee Company.

a. With effect from the Appointed Date, all the equity shares, debentures, bonds, notes or other securities held by all the Transferor Companies, whether convertible into equity or not and whether quoted or not shall, without any further act or deed, be and stand transferred to the Transferee Company as also all the movable assets including cash in hand, if any, of all the Transferor Companies shall be capable of passing by manual delivery or by endorsement and delivery, as the case may be, to the Transferee Company to the end and intent that the property therein passes to the Transferee Company on such manual delivery or by endorsement and delivery.

b. In respect of movable properties of all the Transferor Companies other than specified in Clause 5.2 (a) above, including sundry debtors, outstanding loans and advances, if any

M/s. Purna Plasto Pack Pvt. Ltd
DIRECTOR

Narsing Corrugators Pvt. Ltd.
Director

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

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recoverable in cash or in kind or for value to be received, bank balances and deposits, if any, with government, semi government, local and other authorities and bodies, the Transferee Company may, at any time after the coming into effect of this Scheme in accordance with the provisions hereof, if so required, under any law or otherwise, give notice in such form as it may deem fit and proper to each person, debtor or depositor, as the case may be, that pursuant to the National Company Law Tribunal (Tribunal) having sanctioned the Scheme, the said debts, loans, advances or deposits be paid or made good or held on account of the Transferee Company as the person entitled thereto to the end and intent that the rights of all the Transferor Companies to recover or realize all such debts, deposits and advances (including the debts payable by such persons, debtor or deposit to the Transferor Company) stands transferred and assigned to the Transferee Company and that appropriate entries should be passed in their respective books to record the aforesaid changes.

M/s Puma Plasto Pack Pvt. Ltd.
DIRECTOR

Narsing Corrugators Pvt. Ltd.
Director

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

6.3 With effect from the Appointed Date, all the debts, unsecured debts, liabilities, duties and obligations of every kind, nature and description of all the Transferor

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

Companies shall also under the applicable provisions of the Act, without any further act or deed be transferred to or be deemed to be transferred to the Transferee Company so as to become as and from the Appointed Date, the debts, liabilities, duties and obligations of the Transferee Company on the same terms and conditions as were applicable to the Transferor Companies and further that it shall not be necessary to obtain the consent of any third party or other person who is a party to the contract or arrangement by virtue of which such debts, liabilities, duties and obligations have arisen, in order to give effect to the provisions of this clause.

M/s. Puma Plasto Pack Pvt. Ltd
DIRECTOR

Narsing Corrugators Pvt. Ltd.
Director

6.4 It is clarified that all debts, loans and liabilities, duties and obligations of all the Transferor Companies as on the Appointed Date and all other liabilities which may accrue or arise after the Appointed Date but which relate to the period on or upto the day of the Appointed Date shall be the debts, loans and liabilities, duties and obligations of the Transferee Company including any encumbrance on the assets of all the Transferor Companies or on any income earned from those assets.

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

6.5 It is further specifically clarified, admitted, assured and declared by the Transferee Company that on this Scheme becoming effective, it will take over, absorb and pay and discharge on due dates all the liabilities including liabilities for income tax, wealth tax, central sales tax, value-added tax, service tax, excise duty, custom duty, fringe benefit tax, dividend distribution tax, Goods and Service Tax, if any, of all the Transferor Companies.

M/s. Puma Plasto Pack Pvt. Ltd
DIRECTOR

6.6 With effect from the Appointed Date all debts, liabilities, dues, duties and obligations including all Income Tax, Wealth Tax, Central Sales Tax, Value Added Tax, Service Tax, Excise Duty, Custom Duty, Fringe Benefit Tax, Dividend Distribution Tax, Goods and Service Tax and other Government and Semi-Government and Statutory liabilities of the Transferor Company shall pursuant to the applicable provisions of the Act and without any further act or deed be also transferred or be deemed to be transferred to and vest in and be assumed by the Transferee Company so as to become as from the Appointed Date the debts, liabilities, duties and obligations of Transferee Company on the same terms and conditions as were applicable to the respective Transferor Companies.

Narsing Corrugators Pvt. Ltd.
Director

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
AMPIT BANGUR
Director

NATIONAL COMPANY LAW TRIBUNAL
INDORE

6.7 This Part of the Scheme has been drawn up to comply with the conditions relating to "Amalgamation" as specified under Section 2(1B) of the Income Tax Act, 1961. If any terms or provisions of the Scheme are found or interpreted to be inconsistent with the provisions of the said Section of the Income Tax Act, 1961 at a later date, the provisions of the said Section of the Income Tax Act, 1961, shall prevail and the Scheme shall stand modified by the Board of Directors to the extent determined necessary to comply with Section 2(1B) of the Income Tax Act. 1961. Such modification will however not affect the other parts of the Scheme.

M/s. Puma Plasto Pack Pvt. Ltd
DIRECTOR

Narsing Corrugators Pvt. Ltd.
Director

7. CONTRACTS, BONDS AND OTHER INSTRUMENTS

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

Subject to other provisions contained in the Scheme, all contracts, bonds, lease deeds, debentures, indentures and other instruments to which all the Transferor Companies are parties subsisting or having effect immediately before the Effective Date shall remain in full force and effect against or in favor of the Transferee Company, as the case may be, and may be enforced as fully and as effectually as if, instead of all the Transferor Companies, the Transferee Company had been a party thereto.

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

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8. LEGAL PROCEEDINGS

If any, suit, writ petition, appeal, revision or other proceedings (hereinafter called "the Proceedings") by or against the any/all of the Transferor Companies are pending, the same shall not abate, be discontinued or be in any way prejudicially affected by reason of the transfer of the Undertaking of the concerned Transferor Company or of anything contained in the Scheme, but all such Proceedings may be continued, prosecuted and enforced by or against the Transferee Company in the same manner and to the same extent as it would be or might have been continued, prosecuted and enforced by or against the Transferor Company as if the Scheme had not been made.

On and from the Effective Date, the Transferee Company shall and may initiate any legal proceedings for and on behalf of all the Transferor Companies.

M/s. Shree Packers (M.P.) Pvt. Ltd

ARPIT BANGUR
Director

9. OPERATIVE DATE OF THE SCHEME

The Scheme set out herein in its present form with or without any modifications(s) approved or imposed or directed by the National Company Law Tribunal (Tribunal) or made as per Clause 16 of the Scheme, shall be effective from the Appointed Date.

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10. TRANSFEROR COMPANY STAFF, WORKMEN AND EMPLOYEES

All the staff, workmen and other employees in the service of all of the Transferor Companies immediately before the transfer of the Undertaking under the Scheme shall become the staff, workmen and employees of the Transferee Company on the basis that :

M/s. Puma Plasto Pack Pvt. Ltd.
DIRECTOR

10.1 Their respective services shall have been continuous and shall not have been interrupted by reason of the transfer of the Undertaking of all the Transferor Companies;

Narsing Corrugators Pvt. Ltd.
Director

10.2 The terms and conditions of service applicable to the said staff, workmen or employees after such transfer shall not in any way be less favorable to them than those applicable to them immediately before the transfer; and

Shrijj Corrugators(Mandideep) Pvt. Ltd.
Director

10.3 It is provided that as far as Provident Fund, Gratuity Fund, Superannuation Fund or other special fund, if any, created or existing for the benefit of the staff, workmen and other employees of all the Transferor Companies are concerned, upon the Scheme becoming effective, the Transferee Company shall stand substituted for the respective Transferor Company for all purposes whatsoever related to the

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

administration or operation of such funds or in relation to the obligation to make contributions to the said Funds in accordance with the provisions of such Funds as per the terms provided in the respective trust deeds. It is the aim and intent of the Scheme herein that all the rights, duties, powers and obligations of all the Transferor Companies in relation to such funds shall become those of the Transferee Company and all the rights, duties and benefits of the employees employed in different units of all the Transferor Companies under such Funds and Trusts shall remain fully protected.

M/s. Puma Plasto Pack Pvt. Ltd
DIRECTOR

11. CONDUCT OF BUSINESS BY THE TRANSFEROR COMPANY TILL EFFECTIVE DATE

Narsing Corrugators Pvt. Ltd.
Director

With effect from the Appointed Date, all the Transferor Companies:

11.1 shall carry on and shall be deemed to be carrying on all their business activities and shall stand possessed of their properties and assets for and on account of and in trust for the Transferee Company and all the profits or income accruing or arising to all the Transferor Companies and/or any cost, charges, expenditure or losses arising or incurred by them shall, for all purposes, be treated and be deemed to

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

be and accrue as the profits or incomes or cost, charges, expenditure or losses of the Transferee Company;

11.2 shall in the ordinary course of its business activities, assign, transfer or sell or exchange or dispose of or deal with all or any part of the rights vested with, or title and interest in the property, assets, immovable or movable properties including assignment, alienation, charge, mortgage, encumbrance or otherwise deal with the rights, title and interest in the actionable claims, debtors and other assets etc., with the consent of the Transferee Company and such acts or actions would be deemed to have been carried on by all the Transferor Companies for and behalf of the Transferee Company and such acts or actions would be enforceable against or in favour of the Transferee Company and all the profits or incomes or losses or expenditure accruing or arising or incurred by the Transferor Company shall, for all purposes, be treated as the profits or incomes or expenditure or losses of the Transferee Company;

M/s. Puma Plasto Pack Pvt. Ltd
DIRECTOR

Narsing Corrugators Pvt. Ltd.
Director

Shrij Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

11.3 hereby undertake to carry on its businesses until the Effective Date with reasonable diligence, utmost prudence and shall not, without the written consent of

the Transferee Company, alienate, charge or otherwise deal with the said Undertaking or any part thereof except in the ordinary course of the Transferor Company business;

11.4 shall not, without the written consent of the Transferee Company, undertake any new business.

11.5 shall not vary the terms and conditions of the employment of their employees except in the ordinary course of business.

M/s. Puma Plasto Pack Pvt. Ltd
DIRECTOR

11.6 pay all statutory dues relating to the its Undertaking for and on account of the Transferee Company.

Narsing Corrugators Pvt. Ltd.
Director

12. CONSIDERATION

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

12.1 Upon the coming into effect of the Scheme, and in consideration of the Amalgamation of all the Transferor Companies pursuant to the Scheme, the Transferee Company shall, without any further act or deed or without any further payment, basis the Share Entitlement report, issue and allot to the Shareholders of all the Transferor Companies (whose names are recorded in the register of all the Transferor Companies) proportional number of Equity shares as

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

held by them in their respective Transferor Companies in the following manner:

"Shareholders of Puma Plastopack Private Limited, basis their share valuation report shall receive 19 shares of Shree Packers (M.P.) Private Limited for every 100 shares held as fully paid up equity shares of the face value of Rs. 10/- (Rupees Ten) each credited as fully paid up in the Share Capital of the Transferee Company in the proportion of the number of Equity shares held by the Shareholders in the Transferor Company-I."

M/s. Puma Plasto Pack Pvt. Ltd.
DIRECTOR

"Shareholders of Narsingh Corrugators Private Limited, basis their share valuation report shall receive 28 shares of Shree Packers (M.P.) Private Limited for every 100 shares held as fully paid up equity shares of the face value of Rs. 10/- (Rupees Ten) each credited as fully paid up in the Share Capital of the Transferee Company in the proportion of the number of Equity shares held by the Shareholders in the Transferor Company-II."

Narsing Corrugators Pvt. Ltd.
Director

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

"Shareholders of Shriji Corrugators (Mandideep) Private Limited, basis their share valuation report shall receive 7 shares of Shree Packers (M.P.) Private Limited for every 100 shares held as fully paid

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

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up equity shares of the face value of Rs. 10/- (Rupees Ten) each credited as fully paid up in the Share Capital of the Transferee Company in the proportion of the number of Equity shares held by the Shareholders in the Transferor Company-III."

12.2 In the event that new Equity Shares entitled to be issued results in fractional entitlements, the Board of Directors of the Transferee Company shall be empowered to consolidate and/or round off such fractional entitlements into whole number of Equity shares to an integer at an appropriate stage, in a manner to ensure that fully paid equity shares of Rs. 10/- each to be issued to the shareholders of all the Transferor Companies.

M/s. Puma Plasto Pack Pvt. Ltd
DIRECTOR

12.3 Pursuant to issue of new equity shares as aforesaid to the shareholders of all the Transferor Companies, the shareholders of Transferor Companies shall become the shareholders of the Transferee Company.

Narsing Corrugators Pvt. Ltd.
Director

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

12.4 Upon new equity shares being issued and allotted by the Transferee Company to the members of all the Transferor Companies, in accordance with Clause 12.1 above, the share certificates in relation to the shares held by the members of all the Transferor Companies shall stand cancelled and extinguished

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

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and be of no effect on and from the date of such issue and allotment.

12.5 In the event of there being any pending share transfers, whether lodged or outstanding, of any shareholder of all the Transferor Companies, the Board of Director of the Transferee Company shall be empowered in appropriate cases, prior to or even subsequent to the Record Date, to effectuate such a transfer as if such changes in the registered holder were operative as on record date, in order to remove any difficulties, after the effectiveness of this scheme.

M/s. Puma Plasto Pack Pvt. Ltd.
DIRECTOR

12.6 The new Equity Shares to be issued to the members of all the Transferor Companies under Clause 12.1 above shall be subject to Memorandum and article of Association of the Transferee Company and shall rank pari passu with the existing equity shares of the Transferee Company in all respects for the Financial Year starting from the Appointed Date in terms of the Scheme with the existing Equity Shares of the Transferee Company.

Narsing Corrugators Pvt. Ltd.
Director

Shrijj Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd.
ARPIT BANGUR
Director

12.7 For the purpose of Stamp Duty to be levied, if any, on the issue of new equity shares, appointed date shall be deemed as relevant date.

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13 PROFITS, DIVIDENDS, BONUS / RIGHTS SHARES

13.1 With effect from the Appointed Date, all the Transferor Companies shall not without the prior written consent of the Transferee Company, utilize the profits, if any, for declaring or paying of any dividend to its shareholders and shall also not utilize, adjust or claim adjustment of profits/ reserves, as the case may be earned/ incurred or suffered after the Appointed Date.

13.2 The Transferor Companies shall not after the Appointed Date, issue or allot any further securities, by way of rights or bonus or otherwise without the prior written consent of the Board of Directors of the Transferee Company.

M/s. Puma Plasto Pack Pvt. Ltd.
DIRECTOR

Narsing Corrugators Pvt. Ltd.
Director

14 ACCOUNTING TREATMENT

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

14.1 The accounting treatment to be given to the amalgamation shall be the ***POOLING OF INTEREST METHOD*** in accordance with the Accounting Standard (AS) 14 i.e. Accounting for Amalgamations notified under Section 133 of the Companies Act, 2013 (the Act) read with the Companies (Accounts) Rules, 2014.

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

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14.2 The Transferee Company shall record all assets and liabilities recorded in the Books of Accounts of all the Transferor Companies, which are transferred to and vested in the Transferee Company pursuant to the Scheme at their carrying values as on the Appointed Date as they appear in the books of all the Transferor Companies.

14.3 In case of any differences in the accounting policies between the Transferee Company and the Transferor Companies, the impact of the same till the appointed date shall be quantified and adjusted in the reserves of the Transferee Company to ensure that the financial statements of the Transferee Company reflect the financial position on the basis of consistent accounting policies.

M/s. Puma Plasto Pack Pvt. Ltd.
DIRECTOR

Narsing Corrugators Pvt. Ltd.
Director

14.4 The balance of the retained earnings of the Transferor Companies shall be aggregated with the corresponding balance appearing in the financial statements of the Transferee Company.

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd.
ARPIT BANGUR
Director

14.5 The identity of the reserves appearing in the financial statement of the Transferor Company shall be preserved and shall appear in the financial statements of the Transferee Company in the same form in which

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they appeared in the financial statements of the Transferor Companies.

14.6 The difference, if any, between the amount recorded as investment in the books of Transferee Company and the amount of share capital of any of the Transferor Companies shall be transferred to capital reserve and shall be presented separately from other capital reserves with disclosure of its nature and purpose in the notes in the books of the Transferee Company.

14.7 Inter-company balances and inter-company transactions, if any, till the Appointed date will stand cancelled including cancellation of share capital of the Transferor Companies against Investment in the books of Transferee Company.

M/s. Puma Plasto Pack Pvt. Ltd.
DIRECTOR

Marsing Corrugators Pvt. Ltd.
Director

15 TAX TREATMENT

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

15.1 Any tax liabilities under the Income Tax Act, 1961, or other applicable laws/regulations dealing with taxes/duties/levies (hereinafter in this clause referred to as "Tax Laws") allocable or related to the Transferor Company to the extent not provided for or covered by tax provision in the accounts made as on the date immediately preceding the Appointed Date shall be transferred to the Transferee Company. Any surplus in any of the Transferor Companies in the

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provision for taxation/duties/levies account including advance tax, MAT credit, GST and TDS as on the date immediately preceding the Appointed Date will also be transferred to the account of the Transferee Company.

15.2 Any refund, set off, credits, benefits under the Tax Laws (including MAT credit, income tax, GST etc.) due to any of the Transferor Companies consequent to the assessments made on the Transferor Company and for which no credit, set- off, benefit has been taken in the accounts as on the date immediately preceding the Appointed Date shall also belong to and be received by the Transferee Company.

M/s. Puma Plasto Pack Pvt. Ltd.
DIRECTOR

16 DISSOLUTION OF THE TRANSFEROR COMPANIES.

Narsing Corrugators Pvt. Ltd.
Director

16.1 On the Scheme becoming effective, all the Transferor Companies shall without any further act, instrument or deed be and stand dissolved without being wound up.

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd.
ARPIT BANGUR
Director

16.2 Upon the Scheme taking effect and after dissolution of the Transferor companies, the Board of Directors of the Transferee Company is hereby authorized to take steps as may be necessary or desirable or proper to resolve any question, doubts or difficulties whether by reason of any order(s) or any directive order or

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sanction of any authority or otherwise arising out of or under this Scheme or any matter therewith.

PART -C

GENERAL

17 APPLICATIONS TO THE TRIBUNAL.

M/s. Puma Plasto Pack Pvt. Ltd
DIRECTOR

The **PUMA PLASTO PACK PRIVATE LIMITED** Transferor Company-I, **NARSINGH CORRUGATORS PRIVATE LIMITED** Transferor Company-II, **SHRIJI CORRUGATORS (MANDIDEEP) PRIVATE LIMITED** Transferor Company -III and **SHREE PACKERS (M.P.) PRIVATE LIMITED**, the Transferee Company herein shall, with all reasonable dispatch, make applications under the applicable provisions of the Act to the National Company Law Tribunal (Tribunal) for sanctioning the Scheme and for dissolution of the Transferor Companies without being wound up.

Narsing Corrugators Pvt. Ltd.
Director

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

18 MODIFICATIONS/AMENDMENTS TO THE SCHEME

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

18.1 The **PUMA PLASTO PACK PRIVATE LIMITED** Transferor Company-I, **NARSHINGH**

CORRUGATORS PRIVATE LIMITED Transferor Company-II, **SHRIJI CORRUGATORS (MANDIDEEP) PRIVATE LIMITED** Transferor Company -III Transferor Company (by its Directors) and the **SHREE PACKERS(M.P.) PRIVATE LIMITED,** Transferee Company (by its Directors) may assent to any modifications or amendments to the Scheme or agree to any terms and/or conditions which the Tribunal and/or any other authorities under law may deem fit to direct or impose or which may otherwise be considered necessary or desirable for settling any question or doubt or difficulty that may arise for implementing and/or carrying out the Scheme and do all acts, deeds and things as may be necessary, desirable or expedient for putting the Scheme into effect. All amendments/modifications to the Scheme shall be subject to approval of National Company Law Tribunal (Tribunal).

M/s. Puma Plasto Pack Pvt. Ltd
DIRECTOR

Narsing Corrugators Pvt. Ltd.
Director

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

For the purpose of giving effect to the Scheme or to any modification thereof, the Directors of the Transferee Company are hereby authorised to give such directions and/or to be take such steps as may be necessary or desirable including any directions for settling any question or doubt or difficulty whatsoever that may arise.

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19. SCHEME CONDITIONAL ON APPROVALS / SANCTIONS.

The Scheme is conditional on and subject to:

19.1 The approval to the Scheme by the requisite majorities of the members and creditors of all the Transferor Companies and of the members and creditors of the Transferee Company.

19.2 The requisite resolution(s) under the applicable provisions of the said Act being passed by the Shareholders of the Transferee Company for any of the matters provided for or relating to the Scheme, as may be necessary or desirable.

M/s. Puma Plasto Pack Pvt. Ltd.
DIRECTOR

19.3 The sanction of the National Company Law Tribunal (Tribunal) under the applicable provisions of the Act, in favor of all the Transferor Companies and the Transferee Company and to the necessary Order or Orders under the said Act being obtained.

Narsing Corrugators Pvt. Ltd.
Director

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd.
ARPIT BANGUR
Director

19.4 Any other sanction or approval of the Appropriate Authorities concerned, as may be considered necessary and appropriate by the respective Boards of Directors of all the Transferor Companies and the Transferee Company being obtained and granted in

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respect of any of the matters for which such sanction or approval is required.

19.5 The requisite consent, approval or permission of the Central Government or any other statutory or regulatory authority, which by law may be necessary for the implementation of this Scheme.

19.6 The certified copy of the Order of the National Company Law Tribunal (Tribunal) sanctioning the Scheme being filed with the Registrar of Companies, Gwalior.

19.7 Each part of the Scheme shall be given effect to as per the chronology in which it has been provided for in the Scheme. The provisions contained in this Scheme are inextricably inter-linked with the other provisions and the Scheme constitutes an integral whole. The Scheme would be given effect to only if it is approved in its entirety unless specifically agreed otherwise by respective Board of Directors or any Committee constituted by such Board of the Transferor Company and the Transferee Company.

M/s Puma Plasto Pack Pvt. Ltd.
DIRECTOR

Narsing Corrugators Pvt. Ltd.
Director

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

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20. EFFECT OF NON RECEIPT OF APPROVALS/ SANCTIONS.

In the event of any approvals or conditions enumerated in the Scheme not being obtained or complied with, or for any other reason, the Scheme cannot be implemented, the Boards of Directors of the Transferee Company and the Transferor Companies shall mutually waive such conditions as they consider appropriate to give effect, as far as possible, to this Scheme and failing such mutual agreement, or in case the Scheme not being sanctioned by the Hon'ble National Company Law Tribunal, the Scheme shall become null and void.

M/s. Puma Plasto Pack Pvt. Ltd
DIRECTOR

21. EXPENSES CONNECTED WITH THE SCHEME

Narsing Corrugators Pvt. Ltd.
Director

Shriji Corrugators(Mandideep) Pvt. Ltd.
Director

M/s. Shree Packers (M.P.) Pvt. Ltd
ARPIT BANGUR
Director

All costs, charges, taxes including duties, levies and all other expenses of the Transferor Companies and the Transferee Company respectively in relation to or in connection with the Scheme and of carrying out and implementing/completing the terms and provisions of the Scheme and/or incidental to the completion of Amalgamation of the said Undertaking of all the Transferor Companies in pursuance of the Scheme shall be borne and paid solely by the Transferee Company.

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Annexure-B

CIN:U24132MP1994PTC008198

PUMA PLASTOPACK PRIVATE LIMITED

Registered Office: 69-B, INDUSTRIAL AREA MAXI ROAD UJJAIN MP 456001 IN
Mail ID: plastopackpuma@gmail.com PH: 0734-2526498

TP 44 of 2019 [CP(CAA) 127 of 2018 in CA(CAA) 66 of 2018]

IN THE MATTER OF:

Puma Plastopack Pvt.Ltd.	(Transferor Company)
Narsing Corrugators Pvt Ltd.	(Transferor Company)
Shriji Corrugators (Mandideep) Pvt Ltd.	(Transferor Company)
Shree Packers (MP) Pvt Ltd.	(Transferee Company)

List of Assets of Puma Plastopack Private Limited.

Schedule

Part I

Particulars of Freehold Properties	
(i) Land:	Nil
a) Complete Address	
b) Area in Sq. Meters	
c) Brief description of location etc.	
d) No Value required.	
(ii) Building:	Nil
a) Complete Address	
b) Area in Sq. Meters	
c) Brief description of location etc.	
d) No Value required.	

Part II

Particulars of Leasehold Properties	
(i) Land :	Nil
a) Complete Address	
b) Area in Sq. Meters	
c) Brief description of location etc.	
d) No Value required.	
(ii) Building :	Nil
a) Complete Address	
b) Area in Sq. Meters	
c) Brief description of location etc.	
d) No Value required.	

NATIONAL COMPANY LAW TRIBUNAL INDIA

CIN:U24132MP1994PTC008198

PUMA PLASTOPACK PRIVATE LIMITED

Registered Office: 69-B, INDUSTRIAL AREA MAXI ROAD UJJAIN MP 456001 IN

Mail ID: plastopackpuma@gmail.com PH: 0734-2526498

Part III

A. Particulars of Investment in Shares & Securities :Nil			
Name of the Company	**No. of Shares**	**Face Value**	**Total Value in Rs.**

B. Particulars of Bank Accounts: Nil			
Sr. No.	**Bank & Branch**	**Type of Account**	**Account No.**
1			
2			

C. Registration with Various Authorities under respective laws, Bodies etc. :		
Name of Authority	Nature of registration	Registration Number
INCOME TAX DEPARTMENT	PAN	AABCP0773D
	TAN	NA
SALES TAX DEPARTMENT	VAT	NA
SERVICE TAX DEPARTMENT	S.T.REG.NO.	NA
	INPUT SERVICE DISTRIBUTOR	
	REG.NO.	NA
EXCISE & CUSTOMS	DGFT IE CODE NO.	NA
	BIN No.	NA
EXCISE REGISTRATION NO.		NA
MINISTRY OF INDUSTRIES GOVERNMENT OF INDIA		NA
SMALL SCALE INDUSTRIES REG.NO.	UDYOG AADHAAR	NA
PF REGISTRATION NO.		NA
ESI REGISTRATION	EMPLOYER CODE	NA
FACTORY LICENCE NO.	WORK A FACTORY	NA
PROFESSIONAL TAX REGISTRATION NO.		NA
LIC GROUP GRATUITY POLICY NO.		NA

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CIN:U24132MP1994PTC008198

PUMA PLASTOPACK PRIVATE LIMITED

Registered Office: 69-B, INDUSTRIAL AREA MAXI ROAD UJJAIN MP 456001 IN
Mail ID: plastopackpuma@gmail.com PH: 0734-2526498

CONTRACTUAL LABOUR REGISTRATION NO.		NA
Electric Connections		NA
GST		NA

D. VEHICLES Nilz	
Description	
Registration No.	
Vehicle No.	

For **Puma PlastopackPrivate Limited**

PUMA PLASTOPACK PVT. LTD.

Name: ANAND BANGUR
Director
DIN 00017170

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

CIN: U29101MP1996PTC011024
NARSING CORRUGATORS PRIVATE LIMITED
Registered Office: 69 ,INDUSTRIAL AREA MAXI ROAD UJJAIN MP 456001 IN
Mail Id: narsinghcorrugators@gmail.com PH:07342526498

TP 44 of 2019 [CP(CAA) 127 of 2018 in CA(CAA) 66 of 2018]

IN THE MATTER OF:

Puma Plastopack Pvt.Ltd.	(Transferor Company)
Narsing Corrugators Pvt Ltd.	(Transferor Company)
Shriji Corrugators (Mandideep) Pvt Ltd.	(Transferor Company)
Shree Packers (MP) Pvt Ltd.	(Transferee Company)

List of Assets of Narsing Corrugators Private Limited.

Schedule

Part I

Particulars of Freehold Properties	
(i) Land:	Nil
a) Complete Address	
b) Area in Sq. Meters	
c) Brief description of location etc.	
d) No Value required.	
(ii) Building:	Nil
a) Complete Address	
b) Area in Sq. Meters	
c) Brief description of location etc.	
d) No Value required.	

Part II

Particulars of Leasehold Properties	
(i) Land :	Nil
a) Complete Address	
b) Area in Sq. Meters	
c) Brief description of location etc.	
d) No Value required.	
(ii) Building :	Nil
a) Complete Address	
b) Area in Sq. Meters	
c) Brief description of location etc.	
d) No Value required.	

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

CIN: U29101MP1996PTC011024

NARSING CORRUGATORS PRIVATE LIMITED

Registered Office: 69 ,INDUSTRIAL AREA MAXI ROAD UJJAIN MP 456001 IN

Mail Id: narsinghcorrugators@gmail.com PH:07342526498

Part III

A. Particulars of Investment in Shares & Securities :Nil			
Name of the Company	**No. of Shares**	**Face Value**	**Total Value in Rs.**

B. Particulars of Bank Accounts:			
Sr. No.	**Bank & Branch**	**Type of Account**	**Account No.**
1	BANK OF BARODA	CURRENT	05050200000893
2	PUNJAB NATIONAL BANK	CURRENT	0459002100044896

C. Registration with Various Authorities under respective laws, Bodies etc. :		
Name of Authority	Nature of registration	Registration Number
INCOME TAX DEPARTMENT	PAN	AACCD1630N
	TAN	NA
SALES TAX DEPARTMENT	VAT	NA
SERVICE TAX DEPARTMENT	S.T.REG.NO.	NA
	INPUT SERVICE DISTRIBUTOR	
	REG.NO.	NA
EXCISE & CUSTOMS	DGFT IE CODE NO.	NA
	BIN No.	NA
EXCISE REGISTRATION NO.		NA
MINISTRY OF INDUSTRIES GOVERNMENT OF INDIA		NA
SMALL SCALE INDUSTRIES REG.NO.	UDYOG AADHAAR	NA
PF REGISTRATION NO.		NA
ESI REGISTRATION	EMPLOYER CODE	NA
FACTORY LICENCE NO.	WORK A FACTORY	NA

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CIN: U29101MP1996PTC011024
NARSING CORRUGATORS PRIVATE LIMITED
Registered Office: 69 ,INDUSTRIAL AREA MAXI ROAD UJJAIN MP 456001 IN
Mail Id: narsinghcorrugators@gmail.com PH:07342526498

PROFESSIONAL TAX REGISTRATION NO.		NA
LIC GROUP GRATUITY POLICY NO.		NA
CONTRACTUAL LABOUR REGISTRATION NO.		NA
Electric Connections		NA
GST		NA

D. VEHICLES	
Description	HERO HONDA SPLENDOR PLUS
Registration No.	07K03F36680
Vehicle No.	MP13MC3255

For **Narsing Corrugators Limited**

Name : Amit Jhanwar
Director
DIN 00823104

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CIN: U21020MP2012PTC028164
SHREEJI CORRUGATORS(MANDIDEP) PRIVATE LIMITED
Registered Office: 42,CHOTA SARAFA UJJAIN MP 456010
Mail Id: shrijicorrugators@gmail.com PH: 07342526498

TP 44 of 2019 [CP(CAA) 127 of 2018 in CA(CAA) 66 of 2018]

IN THE MATTER OF:

Puma Plastopack Pvt.Ltd.	(Transferor Company)
Narsing Corrugators Pvt Ltd.	(Transferor Company)
Shriji Corrugators (Mandideep) Pvt Ltd.	(Transferor Company)
Shree Packers (MP) Pvt Ltd.	(Transferee Company)

List of Assets of Shreeji Corrugators (Mandideep) Private Limited.

Schedule

Part I

Particulars of Freehold Properties	
(i) Land:	Nil
a) Complete Address	
b) Area in Sq. Meters	
c) Brief description of location etc.	
d) No Value required.	
(ii) Building:	Nil
a) Complete Address	
b) Area in Sq. Meters	
c) Brief description of location etc.	
d) No Value required.	

Part II

Particulars of Leasehold Properties	
(i) Land :	5422696/-
a) Complete Address	PLOT NO. F-8, INDUSTRIAL AREA PHASE II RAISEN
b) Area in Sq. Meters	6160
c) Brief description of location etc.	VILLAGE:MANDIDEP, TEHSIL:GOHARGANJ DISTRICT: RAISEN
d) No Value required.	
(ii) Building :	31468827/-
a) Complete Address	PLOT NO. F-8, INDUSTRIAL AREA PHASE II RAISEN
b) Area in Sq. Meters	3500
c) Brief description of location etc.	VILLAGE:MANDIDEP, TEHSIL:GOHARGANJ DISTRICT: RAISEN
d) No Value required.	

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CIN: U21020MP2012PTC028164
SHREEJI CORRUGATORS(MANDIDEP) PRIVATE LIMITED
Registered Office: 42,CHOTA SARAFA UJJAIN MP 456010
Mail Id: shrijicorrugators@gmail.com PH: 07342526498

Part III

A. Particulars of Investment in Shares & Securities :Nil			
Name of the Company	**No. of Shares**	**Face Value**	**Total Value in Rs.**

B. Particulars of Bank Accounts:			
Sr. No.	**Bank & Branch**	**Type of Account**	**Account No.**
1	BANK OF BARODA	CURRENT	05050200000624

C. Registration with Various Authorities under respective laws, Bodies etc. :		
Name of Authority	Nature of registration	Registration Number
INCOME TAX DEPARTMENT	PAN	AARCS3228G
	TAN	NA
SALES TAX DEPARTMENT	VAT	NA
SERVICE TAX DEPARTMENT	S.T.REG.NO.	NA
	INPUT SERVICE DISTRIBUTOR	
	REG.NO.	NA
EXCISE & CUSTOMS	DGFT IE CODE NO.	NA
	BIN No.	NA
EXCISE REGISTRATION NO.		NA
MINISTRY OF INDUSTRIES GOVERNMENT OF INDIA		NA
SMALL SCALE INDUSTRIES REG.NO.	UDYOG AADHAAR	NA
PF REGISTRATION NO.		NA
ESI REGISTRATION	EMPLOYER CODE	NA
FACTORY LICENCE NO.	WORK A FACTORY	NA
PROFESSIONAL TAX REGISTRATION NO.		NA

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CIN: U21020MP2012PTC028164
SHREEJI CORRUGATORS(MANDIDEP) PRIVATE LIMITED
Registered Office: 42,CHOTA SARAFA UJJAIN MP 456010
Mail Id: shrijicorrugators@gmail.com PH: 07342526498

LIC GROUP GRATUITY POLICY NO.		NA
CONTRACTUAL LABOUR REGISTRATION NO.		NA
Electric Connections		NA
GST		23AARCS3228G1ZB

D. VEHICLES: Nil	
Description	
Registration No.	
Vehicle No.	

For **Shreeji Corrugators(Mandidep) Limited**

Name: Hemant Kasliwal
Director
DIN 01797300

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